

A. CALL OUT AND ARRIVAL

1. Name of Independent Person

2. Police station

3. Date of interview (DD/MM/YY)

4. Time of call from call centre operator _____:

5. Police contact

Rank:

Name:

Section: Uniform/CIU/SOCIT/Other, Specify:

6. Time you arrived at the police station _____:

7. Reason for parent or guardian not attending

- ☐ YP in DHHS or residential care
- ☐ could not attend
- ☐ refused to attend
- ☐ not contactable
- ☐ YP chose not to contact parents
- ☐ parent is victim, witness or co-accused
- ☐ intervention order in place
- ☐ other, specify

8. How long has the YP been in custody?

9. What are the main types of offences that the YP is being interviewed about?

Crimes against the person

- ☐ assault / affray
- ☐ homicide
- ☐ robbery / armed robbery
- ☐ sexual assault / rape
- ☐ other, specify

Drugs

- ☐ cultivate / manufacture / traffick
- ☐ possess / use
- ☐ other, specify

Crimes against the property

- ☐ theft / shopsteal
- ☐ handle stolen goods / going equipped to steal
- ☐ car related thefts
- ☐ property damage (wilful / criminal damage)
- ☐ burglary / aggravated burglary
- ☐ other, specify

Other

- ☐ weapon offences
- ☐ behaviour offences
- ☐ breach of intervention order
- ☐ breach of bail conditions
- ☐ driving offences
- ☐ other, specify

10. Did the offence occur in DHHS residential unit?

- ☐ Yes ☐ No

B. YOUNG PERSON'S INFORMATION (PART A)

Information that the young person has provided to YRIPP in confidence should be noted in this section of the Interview Report.

11. YP's preferred first name

12. Does YP have any immediate needs?

	required	provided	not provided
water	☐	☐	☐
toilet	☐	☐	☐
food	☐	☐	☐
clothes/blanket	☐	☐	☐
sleep	☐	☐	☐
medical treatment	☐	☐	☐
other: _____	☐	☐	☐

13. Is the YP satisfied with police treatment before IP arrived?

☐ Yes ☐ No

If 'No', what are YP concerns about?

- ☐ conduct of search
- ☐ treatment at arrest
- ☐ words said
- ☐ photographs taken by police
- ☐ DNA sample requested/taken
- ☐ access to legal advice
- ☐ ability to contact parent/guardian/friend or relative
- ☐ access to food or water
- ☐ other, specify _____

What does YP want to do about their concerns?

- ☐ seek legal advice
- ☐ raise with Sergeant now
- ☐ formal complaint later
- ☐ no action now
- ☐ other, specify _____

Do you need to take any action?

☐ Yes ☐ No

If yes, provide details. Describe any injuries.

14. Gender

☐ Male ☐ Female ☐ Other, specify _____

15. Age _____ Date of birth _____ / _____ / _____

16. Who does YP live with?

17. In which country was the YP born?

18. According to the YP what is their cultural identity?

19. According to the YP, are they Aboriginal or Torres Strait Islander (ATSI)?

☐ Yes ☐ No

If YP is ATSI, has VALS spoken with the YP to check if they are OK?

☐ Yes ☐ No

If 'No', why not?

20. According to the YP, is English their first language?

☐ Yes ☐ No

21. Other than English, what languages does the YP speak at home?*

22. Has the YP ever been interviewed by police at a police station as an alleged offender before?

☐ Yes ☐ No

C. INDEPENDENT PERSON OBSERVATIONS

This section of the Interview Report should not contain confidential information about the young person that has been provided to YRIPP in confidence.

Pre-Interview

23. Before the taped interview, were you given the opportunity to talk with the YP in private?

☐ Yes ☐ No

If 'No', were you given the opportunity to talk with the YP in the presence of police?

☐ Yes ☐ No

If 'No', to either of the above, what was the reason?

24. Have you explained the interview process and each of the rights listed below to the YP?

- ☐ interview process
- ☐ not obliged to say or do anything
- ☐ contact friend or relative
- ☐ legal advice / lawyer
- ☐ fingerprints (*Note: for age 14 and under, consent of both parent/guardian **and** YP, or a court order required*)
- ☐ photographs

Optional (as relevant to YP's circumstances)

- ☐ interpreter
- ☐ consular office
- ☐ medical assistance
- ☐ independent third person (ITP)

25. Do you believe the YP understands their rights?

☐ Yes ☐ No

What makes you think this?

26. Did YP seek to exercise any of their rights?

	Yes	No	Contact Made	No Contact Made
friend or relative of YP	☐	☐	☐	☐
interpreter	☐	☐	☐	☐
YRIPP 1300 legal service	☐	☐	☐	☐
Victorian Aboriginal Legal Service (lawyer)	☐	☐	☐	☐
other lawyer	☐	☐	☐	☐
other: _____	☐	☐	☐	☐

If contact was not successful, why not?

27. If the YP did not seek or did not receive legal advice, what was the reason?

28. Do you think the YP's English is adequate to understand the interview?

☐ Yes ☐ No

Has an interpreter been contacted?

☐ Yes ☐ No

If English is not the YP's first language, what makes you think they do not need an interpreter?

29. Do you believe the YP is fit for interview and has the capacity to participate in and understand the interview?

☐ Yes ☐ No

If 'No', why not?

If 'No', what steps have been taken to address this?

- ☐ Independent Third Person (ITP) contacted
- ☐ forensic medical officer contacted
- ☐ other steps taken, specify

Interview

30. Interviewing officers

Informant

Rank: _____ Badge Number: _____

Name: _____

Corroborator

Rank: _____ Badge Number: _____

Name: _____

31. Interview times

commenced
(or recommenced with IP present) _____ :

suspended _____ : _____ recommenced _____ :

If the interview was suspended, what was the reason?

concluded _____ :

32. Did you witness any of the following? And were the following done with or without the YP's consent?

	yes	no	didn't witness but told it happened	consent	without consent
fingerprinting	☐	☐	☐	☐	☐
photographing	☐	☐	☐	☐	☐
searching	☐	☐	☐	☐	☐
DNA	☐	☐	☐	☐	☐

33. What was the outcome for the YP of the interview process or arrest?

- ☐ YP released without charge (*includes released pending summons*)
- ☐ YP received official police caution
- ☐ YP charged on summons
- ☐ YP charged and bailed by police
- ☐ YP charged, bail refused by police and YP to be taken to court
- ☐ YP charged, bail refused by police and police arranging out of hours bail hearing
- ☐ other, specify

34. Do you think the YP understood the outcome of the interview process or arrest (eg. bail conditions, intervention order)?

☐ Yes ☐ No

What makes you think this?

35. If an out of hours bail hearing was conducted, who supported the YP at the hearing?

- ☐ IP did not stay for bail hearing because CAHABPS present or on their way to police station
- ☐ both CAHABPS and IP present at bail hearing
- ☐ CAHABPS did phone assessment and IP present at bail hearing
- ☐ other, specify

36. If known, what was the outcome of the bail hearing?

- ☐ YP remanded (bail justice refused bail)
- ☐ YP granted bail by bail justice

IP'S Concerns

37. From what you have witnessed, do you have any concerns about the treatment of the YP, the process or the YP's welfare?

☐ Yes ☐ No

If 'Yes', what are your concerns about?

- ☐ police
- ☐ bail justice
- ☐ CAHABPS/DHS
- ☐ YP
- ☐ Protective Services Officer (PSO)
- ☐ Victorian Aboriginal Legal Service (VALS)
- ☐ Victoria Legal Aid (VLA)
- ☐ other, specify

If your concerns are about the conduct of a particular person, what is that person's name?

What action did you or others take, if any?

D. YOUNG PERSON'S INFORMATION (PART B)

Referral Information

Information that the young person has provided to YRIPP in confidence should be noted in this section of the Interview Report.

38. Does the YP have a 'worker'?

- ☐ no, does not currently have a worker
- ☐ yes, from Child Protection (DHHS)
- ☐ yes, from Youth Justice (DHHS)
- ☐ yes, from Disability Services
- ☐ yes, has worker but unsure of agency
- ☐ yes, from another agency (eg Resi Unit)

39. Did you refer the YP to support services?

	Faxed Referral	Card Referral
legal service	☐	☐
housing	☐	☐
counselling	☐	☐
health service	☐	☐
drug & alcohol service	☐	☐
Indigenous/Aboriginal	☐	☐
migrant and refugee	☐	☐
generic youth service	☐	☐
education/employment	☐	☐
school teacher	☐	☐
disability service	☐	☐
other	☐	☐

Name of services you referred the YP to?

40. If YP did not want a referral, what were the reasons?

Young Person's Contact Details*

Has YP given permission to YRIPP to record their contact details so YRIPP can follow them up if required?

☐ Yes ☐ No

Full Name: _____

Address: _____

Phone: _____

Contact through another trusted person: include name, relationship, contact phone number.

After Interview

41. Was the YP happy with their treatment by police and with the interview process?

☐ Yes ☐ No

If 'No', provide details of the YP's concerns if not noted elsewhere on this Interview Report.

What does YP want to do about their concerns?

- ☐ seek legal advice
- ☐ raise with Sergeant now
- ☐ formal complaint later
- ☐ no action now
- ☐ other, specify

E. AFTER INTERVIEW

Welfare Check by Police

42. Did you and the YP speak to a Sergeant at the end of the interview process?

☐ Yes ☐ No

Who was the Sergeant?

Rank: _____

Name: _____

43. Did the YP get their property back?

☐ Yes ☐ No

If 'No', what was the reason?

44. Were any concerns raised with the Sergeant?

☐ yes by the YP
☐ yes by the IP
☐ none raised

If 'Yes', what were the concerns raised?

45. Does the YP have accommodation for the night?

☐ Yes ☐ No

If 'No', what action was taken and by whom?

46. How is the YP getting home?

☐ police
☐ family or friend
☐ public transport/walking
☐ workers
☐ other, specify

47. Did you see the YP leave the police station?

☐ Yes ☐ No

Final Details

48. Which of the following occurred?

☐ formal recorded interview
☐ statement interview
☐ rebailing only
☐ bail hearing before bail justice
☐ caution
☐ other, specify

☐ interview cancelled after you left home
☐ interview cancelled before you left home

49. If a co-accused YP is present, who supported them?

☐ parent / guardian
☐ YRIPP Independent Person. Name (if known):

☐ Other, specify

50. I would like a YRIPP staff member to call me about this call out.

☐ Yes ☐ No

51. Time you left the police station _____ :

F. ADDITIONAL NOTES

Include anything you think should be noted about the interview, or about your role at the police station if not there for an interview, and the YP's appearance. Be careful to note anything that seemed unusual about the interview.

Remember this is a legal document, please make factual statements and refrain from including personal opinions.

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